

(48)

Tentative Ruling

Re: ***Minor v. Nazarian, M.D. et al.***
Superior Court Case No. 25CECG02427

Hearing Date: August 11, 2026 (Dept. 403)

Motion: By Defendant Arbi Nazarian, M.D. for an Order to Compel Initial Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages; Request for Monetary Sanctions

Tentative Ruling:

To grant defendant Arbi Nazarian, M.D.'s motion to compel plaintiff Kathy G. Minor to provide verified responses to Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Plaintiff Kathy G. Minor is ordered to serve complete verified responses to the discovery set forth above, without objections, within 20 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of defendant Arbi Nazarian, M.D. and against plaintiff Kathy G. Minor. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Plaintiff Kathy G. Minor is ordered to pay \$900.00 in total sanctions to Salinas Law Group within 30 days of the clerk's service of the minute order.

**If oral argument is timely requested, it will be entertained on
Thursday, August 13, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives any objection to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

In the case at bench, on April 6, 2026, defendant Arbi Nazarian, M.D. ("Defendant") served Form Interrogatories, Set One, Special Interrogatories, Set One, Request for Production of Documents, Set One, and Request for Nature and Amount of Damages on plaintiff Kathy G. Minor ("Plaintiff") by electronic service. Plaintiff was required to respond by May 8, 2026. Plaintiff failed to serve verified responses. Therefore, Defendant is entitled to an order compelling Plaintiffs to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

Sanctions

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Counsel for Defendant submits that their hourly rate is \$220.00 per hour. The court approves the hourly rates as reasonable. Plaintiff seeks imposition of 3 hours for legal research and preparation of the motions considered, and an additional fee for an appearance at a possible hearing. The court imposes sanctions in the reduced amount of \$900.00, inclusive of the \$240.00 in filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 10, 2026.
(Judge's initials) (Date)